



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

September 24, 2015

Memorandum for: Deputy Commissioner, Trials

Re: Police Officer Glenn Ganzenmuller
Tax Registry No. 918612
42 Precinct
Disciplinary Case No. 2012-8199

The above named members of the service appeared before Assistant Deputy Commissioner David S. Weisel on April 9, 2015, charged with the following:

DISCIPLINARY CASE NO. 2012-8199

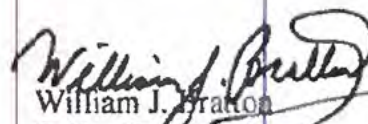
1. Said Police Officer Glenn Ganzenmuller, while assigned to the 42nd Precinct, on or about and between July 14, 2011 and May 9, 2012, on six (6) occasions, while on duty, was unprepared at the Bronx Traffic Violations Bureau, to wit: while present to provide testimony on summonses said Police Officer issued, said Police Officer did not have either copies of the summonses or his applicable Department issued memo book with him in court, resulting in the dismissal of ten (10) cases. *(As amended)*

P.G. 211-01, Page 2, Paragraph 11

**DUTIES AND CONDUCT
IN COURT**

In a Memorandum dated June 4, 2015, Assistant Deputy Commissioner David S. Weisel found Police Officer Glenn Ganzenmuller Guilty of Specification No. 1, as pleaded, in Disciplinary Case No. 2012-8199. Having read the Memorandum and analyzed the facts of this matter, I approve the findings but disapprove the penalty for Police Officer Ganzenmuller.

I have considered the totality of issues and circumstances in this matter, including the testimony offered in mitigation, and deem that a lesser penalty is warranted. Therefore, Police Officer Ganzenmuller is to forfeit five (5) vacation days, as a disciplinary penalty.


William J. Bratton
Police Commissioner



POLICE DEPARTMENT

June 4, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Glenn Ganzenmuller
Tax Registry No. 918612
42 Precinct
Disciplinary Case No. 2012-8199

The above-named member of the Department appeared before the Court on April 9, 2015, charged with the following:

1. Said Police Officer Glenn Ganzenmuller, while assigned to the 42nd Precinct, on or about and between July 14, 2011 and May 9, 2012, on six (6) occasions, while on duty, was unprepared at the Bronx Traffic Violations Bureau, to wit: while present to provide testimony on summonses said Police Officer issued, said Police Officer did not have either copies of the summonses or his applicable Department issued memo book with him in court, resulting in the dismissal of ten (10) cases. (*As amended*)

P.G. 211-01, Page 2, Paragraph 11 - DUTIES AND CONDUCT IN COURT

The Department was represented by Samuel Yee, Esq., Department Advocate's Office.
Respondent was represented by Craig R. Hayes, Esq., Worth, Longworth & London LLP.

DECISION

Respondent, having entered a plea of Guilty to the subject charges through counsel, is found Guilty as charged. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

FINDINGS AND ANALYSIS

Respondent pleaded Guilty in this matter to being unprepared for six appearances at the Traffic Violations Bureau (TVB), leading to the dismissal of ten cases. Respondent testified that he was a long-serving and experienced summons officer, although he conceded that he was not the 42 Precinct's summons officer at the time of the TVB appearances. He nevertheless testified that he had a large number of officer copies of summonses. The Department gave him no filing system other than a box in his locker. Nor did they give him any staff, like a police administrative aide, to assist. There were hundreds if not one thousand summonses in his locker. He kept them grouped only by month.

It was undisputed that on or about and between July 14, 2011, and May 9, 2012, Respondent had six TVB appearances. He did not bring his copies of the summonses in question because, for example, he did not have time to look for them or did look but could not find them in the mass of summonses he had to keep in his locker. Respondent conceded that he had one to two weeks of notice before the appearances.

On certain of the occasions in question, Respondent testified, he had taken notes on the rear of the summons but those notes did not match the facts on the front and he elected not to go forward. Respondent's copies were the only place he had taken notes about the incidents, as he did not place any notations about them in his Activity Log, or did not bring his Activity Log to TVB. The court and motorist copies of the summonses did not have these same notes.

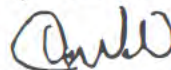
Respondent indicated that he could ask the TVB judge for an adjournment but there was only a 50-50 chance of it being granted. Respondent noted, however, that adjournments routinely were given to motorists.

Thus the summons cases, ten in all, were dismissed. Respondent noted that on any of these six appearances, he might have had to testify on as many as 40 summonses but was unable to testify about merely, for example, two of them for that particular day.

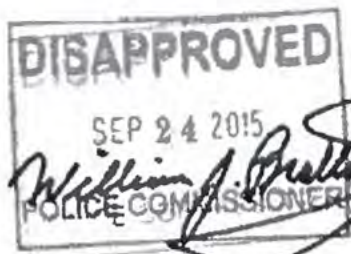
Respondent made good suggestions about better ways that the Department can organize records of summons activity. He has not, however, given sufficient specific reasons individual to his situation to alter the long-standing precedent. That is, the loss of more than four summonses as the result of the officer's failure to prepare for a court appearance results in a penalty of 10 vacation days. Cf. Case No. 2011-5159 (Feb. 5, 2013) (10 days for officer who failed to bring copies of four summonses and failed to make adequate Activity Log entries about those summonses). Therefore, the Court recommends that Respondent forfeit 10 vacation days.

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on July 26, 1996. Information from his personnel file that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials



POLICE DEPARTMENT
CITY OF NEW YORK

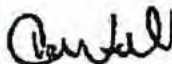
From: Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER GLENN GANZENMULLER
TAX REGISTRY NO. 918612
DISCIPLINARY CASE NO. 2012-8199

Respondent was appointed to the Department on July 26, 1996. He received an overall rating of 4.0 "Highly Competent" in his last three annual evaluations in 2012, 2013 and 2014.

Respondent has no prior formal disciplinary record and no monitoring history.

[REDACTED]

For your consideration.


David S. Weisel
Assistant Deputy Commissioner – Trials